

Ramesh Chandra Chaurasia v. State of U.P.

Allahabad High Court · Division Bench · 4 August 2017 · Writ-C No. 34797 of 2017 · **Writ disposed; billing dispute directed to CGRF within two months.**

HEADNOTE

A consumer challenging electricity bills and recovery notices on the plea of a meter fault was directed to file a proper application before the Consumer Grievance Redressal Forum under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. The High Court did not examine the bills on merits and required the Forum to decide any such application preferably within two months.

FACTUAL SUMMARY

The petitioner, Ramesh Chandra Chaurasia, filed Writ-C No. 34797 of 2017 in the Allahabad High Court against the State of U.P. and others, disputing electricity bills and a recovery notice annexed to the petition. He urged that he was being wrongly subjected to realization on account of a fault in the meter, and contended that he had already filed a representation. Counsel for the petitioner was heard. The Court did not examine the meter or the bills on merits.

HOLDING-UNITS

INTERPLAY · UP-2005::CGRF

[billing-dispute-cgrf](#)

HOLDING

A consumer disputing electricity bills and recovery on the ground of a meter fault must raise the dispute before the Consumer Grievance Redressal Forum under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005; the writ court will not decide such a billing dispute and will dispose of the petition by directing that a proper CGRF application, if filed, be decided preferably within two months. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS AND RECOVERY NOTICES WERE VITIATED BY A METER FAULT

The Court did not examine the correctness of the bills or the alleged meter defect and relegated the petitioner to CGRF. ¶ 1